

STATE OF NEW YORK

1836--A

2025-2026 Regular Sessions

IN SENATE

January 14, 2025

Introduced by Sen. SKOUFIS -- read twice and ordered printed, and when printed to be committed to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to prohibiting awarding TAP grants to those enrolled at for-profit universities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph c of subdivision 3 of section 667 of the educa-
2 tion law, as added by chapter 83 of the laws of 1995 and as relettered
3 by section 2 of part J of chapter 58 of the laws of 2011, is amended to
4 read as follows:
5 c. Restrictions. In no [~~even shall~~] **event** shall any award:
6 (i) be made unless the annual tuition (exclusive of educational fees)
7 and, if applicable, the college fee levied by the state university of
8 New York pursuant to the April first, nineteen hundred sixty-four
9 financing agreement with the New York state dormitory authority charged
10 for the program in which the student is enrolled total at least two
11 hundred dollars; or
12 (ii) exceed the amount by which such annual tuition (exclusive of
13 educational fees) and, if applicable, the college fee levied by the
14 state university of New York pursuant to the April first, nineteen
15 hundred sixty-four financing agreement with the New York state dormitory
16 authority exceed the total of all other state, federal, or other educa-
17 tional aid that is received or receivable by such student during the
18 school year for which such award is applicable and that, in the judgment
19 of the commissioner, would duplicate the purposes of the award; or
20 (iii) be made when income exceeds the maximum income set forth in this
21 subdivision. The commissioner shall list in [~~his~~] **their** regulations all
22 major state and federal financial aid available to New York state
23 students and identify any forms of aid that are duplicative of the

EXPLANATION--Matter in **italics** (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 purposes of the tuition assistance program. For the purposes of this
2 subdivision, neither United States war orphan educational benefits nor
3 benefits under the veterans' readjustment act of nineteen hundred
4 sixty-six shall be considered as federal or other educational aid; or
5 (iv) be made to anyone matriculated at a for-profit institution.
6 § 2. This act shall take effect on the first of July next succeeding
7 the date on which it shall have become a law. Effective immediately, the
8 addition, amendment and/or repeal of any rule or regulation necessary
9 for the implementation of this act on its effective date are authorized
10 to be made on or before such effective date.